

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Lianne May	Team: Squad #7	CCRB Case #: 202103831	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 06/26/2021 7:34 PM	Location of Incident: Front of § 87(2)(b)	Precinct: 75	18 Mo. SOL 12/26/2022	EO SOL 12/26/2022	
Date/Time CV Reported Mon, 06/28/2021 9:19 AM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Mon, 06/28/2021 9:19 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Sergio Castillo	03818	964429	075 PCT
2. POF Jeanette Rodriguez	03555	961193	075 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Alec Solomito	03561	964782	075 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POF Jeanette Rodriguez	Abuse: Police Officer Jeanette Rodriguez stopped the vehicle in which § 87(2)(b) § 87(2)(b) and individuals were occupants.	
B.POM Sergio Castillo	Abuse: Police Officer Sergio Castillo stopped the vehicle in which § 87(2)(b) § 87(2)(b) and Individuals 1-3 were occupants.	
C.POM Sergio Castillo	Abuse: Police Officer Sergio Castillo questioned § 87(2)(b)	
D.POM Sergio Castillo	Abuse: Police Officer Sergio Castillo frisked § 87(2)(b)	
E.POM Sergio Castillo	Abuse: Police Officer Sergio Castillo searched § 87(2)(b)	
F.POM Sergio Castillo	Discourtesy: Police Officer Sergio Castillo spoke discourteously to § 87(2)(b)	
G.POF Jeanette Rodriguez	Abuse: Police Officer Jeanette Rodriguez questioned Individual 1	
H.POF Jeanette Rodriguez	Abuse: Police Officer Jeanette Rodriguez frisked Individual 1	
I.POM Sergio Castillo	Abuse: Police Officer Sergio Castillo questioned Individual 2	
J.POM Sergio Castillo	Abuse: Police Officer Sergio Castillo frisked an Individual 2	

Officer(s)	Allegation	Investigator Recommendation
K.POM Sergio Castillo	Abuse: Police Officer Sergio Castillo questioned § 87(2)(b)	
L.POM Sergio Castillo	Abuse: Police Officer Sergio Castillo frisked § 87(2)(b)	
M.POF Jeanette Rodriguez	Abuse: Police Officer Jeanette Rodriguez frisked Individual 3	
N.POM Sergio Castillo	Abuse: Police Officer Sergio Castillo searched the vehicle in which § 87(2)(b) and § 87(2)(b) and Individuals 1-3 were occupants	
O.POF Jeanette Rodriguez	Abuse: Police Officer Jeanette Rodriguez threatened to seize § 87(2)(b)'s vehicle.	
P.POF Jeanette Rodriguez	Abuse: Police Officer Jeanette Rodriguez threatened to arrest § 87(2)(b)	
Q.POF Jeanette Rodriguez	Abuse: Police Officer Jeanette Rodriguez failed to provide Individual 1 and Individual 3 with business cards	
R.POM Sergio Castillo	Abuse: Police Officer Sergio Castillo failed to provide § 87(2)(b) with a business card.	
S.POM Sergio Castillo	Abuse: Police Officer Sergio Castillo failed to provide Individual 2 with a business card.	

Case Summary

On June 28, 2021, § 87(2)(b) (hereby referred to only as § 87(2)(b)) filed the following complaint through the CCRB website on behalf of his son, § 87(2)(b) who was § 87(2)(b) years old at the time of the incident (BR1).

On June 26, 2021, at 7:34PM, Police Officer Jeanette Rodriguez and Police Officer Sergio Castillo, both of the 75 Precinct, stopped § 87(2)(b)'s vehicle with four of his friends in front of § 87(2)(b) in Brooklyn (**Allegations A and B: Abuse of Authority, vehicle stop, § 87(2)(g)**).

§ 87(2)(b) reported the following complaint to the CCRB as a witness and on behalf of his son. § 87(2)(b) refused to provide contact information for § 87(2)(b) and instead said he would have § 87(2)(b) contact the investigation. § 87(2)(b) never contacted the investigation. § 87(2)(b) did not have any contact information for any of the other occupants in the car. § 87(2)(b) knew only one occupant, § 87(2)(b) and did not know his full name or contact information.

As the other occupants are not identified, they are referred to as Individuals 1-3. From left to right in the photograph that § 87(2)(b) provided (BR2) is § 87(2)(b) (occupant in the back middle seat), Individual 2 (occupant in the driver's side back seat with a black shirt and black hat), § 87(2)(b) (driver), Individual 1 (the front occupant with a gray shirt and black hat), and Individual 3 (occupant in the back passenger side seat with glasses).

PO Castillo asked § 87(2)(b) if he had any weapons and § 87(2)(b) stated that he had a knife on his person (**Allegation C: Abuse of Authority, § 87(2)(g)**). PO Castillo frisked and searched § 87(2)(b) (**Allegations D and E: Abuse of Authority, § 87(2)(g)**). PO Castillo asked § 87(2)(b) what was in his "fucking underwear" (**Allegation F: Discourtesy, § 87(2)(g)**). PO Rodriguez asked Individual 1 if he had any weapons and he stated that he had a knife on his person (**Allegation G: Abuse of Authority, § 87(2)(g)**). PO Rodriguez frisked Individual 1 for the knife (**Allegation H: Abuse of Authority, § 87(2)(g)**). PO Castillo asked Individual 2 if he had any weapons on him and then frisked him (**Allegations I and J: Abuse of Authority, § 87(2)(g)**). PO Castillo asked § 87(2)(b) if he had any weapons on him and then frisked him (**Allegations K and L: Abuse of Authority, § 87(2)(g)**). PO Rodriguez then frisked Individual 3 (**Allegation M: Abuse of Authority, § 87(2)(g)**). PO Castillo searched the car (**Allegation N: Abuse of Authority, § 87(2)(g)**). PO Rodriguez threatened to take § 87(2)(b)'s car to the stationhouse and arrest § 87(2)(b) (**Allegations O and P: Abuse of Authority, § 87(2)(g)**). PO Rodriguez and PO Castillo did not give any business cards to Individuals 1-3 and § 87(2)(b) (**Allegations Q, R, and S: Abuse of Authority, § 87(2)(g)**).

§ 87(2)(b) received a summons for driving an unregistered vehicle (BR3).

The investigation received one body-worn camera (BWC) video each from PO Castillo (BR4), PO Rodriguez (BR5), and Police Officer Alec Solomito (BR6) of the 75 Precinct.

Findings and Recommendations

Allegation A- Abuse of Authority: Police Officer Jeanette Rodriguez stopped the vehicle in which § 87(2)(b) § 87(2)(b) and individuals were occupants.

Allegation B-Abuse of Authority: Police Officer Sergio Castillo stopped the vehicle in which § 87(2)(b) § 87(2)(b) and Individuals 1-3 were occupants.

§ 87(2)(b) filed this complaint as a witness but did not want to provide any contact information for § 87(2)(b) § 87(2)(b) said he would give the investigator's contact information to

§ 87(2)(b) After multiple calls to § 87(2)(b) § 87(2)(b) never contacted the investigation. Individuals 1-3 could not be identified, and § 87(2)(b) could not be contacted (BR7).

§ 87(2)(b) told § 87(2)(b) after the incident that § 87(2)(b) was driving four of his friends, § 87(2)(b) and Individuals 1-3, around his neighborhood in his vehicle. § 87(2)(b) saw a black unmarked car that gave a “whoop” sound at them, but he heard no other sirens. § 87(2)(b) continued to drive until they reached his house and then the black unmarked car parked behind them at on June 26, 2021 at 7:34PM. PO Rodriguez and PO Castillo stopped him in front of his house at § 87(2)(b) in Brooklyn. § 87(2)(b) explained to the investigation that he believed the vehicle was legally registered to § 87(2)(b) and is a § 87(2)(b) sedan purchased in New Jersey. § 87(2)(b) was inside of his house and he first heard arguing from outside and came out of his house. § 87(2)(b) first saw PO Rodriguez and PO Castillo standing next to the vehicle and heard § 87(2)(b) ask the officers why they stopped him. PO Rodriguez said that it was because of the tints on the windows and accused § 87(2)(b) of having fake license plates (BR8).

PO Rodriguez stated that she first noticed that the vehicle had excessively dark tints to a point where she could not see inside the car. This indicated that the car’s tints were over the legal limit of 70%. She also saw that the vehicle had temporary license paper plates from New Jersey. At this point, other than that the plates were temporary, nothing told her that they were illegal. PO Castillo and PO Rodriguez decided together to stop the vehicle based on the tints and to investigate the license plates (BR9).

PO Rodriguez’s BWC at 1:02 shows § 87(2)(b)’s vehicle with a white New Jersey paper license plate and dark windows that one cannot see through. The vehicle is not moving (BR5).

Pursuant to Section 375 (12-a) of the NYS Vehicle and Traffic Law, no motor vehicle can be operated when composed of, covered by or treated with any material which has a light transmittance of less than seventy percent (BR10).

As seen on the BWC, the officers stopped the vehicle’s excessively dark tints. § 87(2)(g)

§ 87(2)(b)

Allegation C- Abuse of Authority: Police Officer Sergio Castillo questioned § 87(2)(b)

Allegation D- Abuse of Authority: Police Officer Sergio Castillo frisked § 87(2)(b)

Allegation E-Abuse of Authority: Police Officer Sergio Castillo searched § 87(2)(b)

Allegation F- Discourtesy: Police Officer Sergio Castillo spoke discourteously to

§ 87(2)(b)

Allegation G-Abuse of Authority: Police Officer Jeanette Rodriguez questioned Individual 1

Allegation H- Abuse of Authority: Police Officer Jeanette Rodriguez frisked Individual 1

Allegation I- Abuse of Authority: Police Officer Sergio Castillo questioned Individual 2

Allegation J- Abuse of Authority: Police Officer Sergio Castillo frisked an Individual 2

Allegation K- Abuse of Authority: Police Officer Sergio Castillo questioned § 87(2)(b)

Allegation L- Abuse of Authority: Police Officer Sergio Castillo frisked § 87(2)(b)

Allegation M- Abuse of Authority: Police Officer Jeanette Rodriguez frisked Individual 3

§ 87(2)(b) explained that the officers made the occupants step out of the car and the officers frisked the occupants (BR8).

PO Rodriguez walked up to the passenger side of the vehicle and PO Castillo walked up to the driver's side of the vehicle. Both officers alleged seeing the vehicle rocking back and forth upon approaching it and explained that they interpreted the movement to mean that the occupants could be hiding contraband, drugs, or weapons. PO Castillo asked for § 87(2)(b)'s license, insurance, and registration. As § 87(2)(b) looked for his registration in the glove compartment, he pulled out multiple New Jersey white paper license plates. Both officers asked § 87(2)(b) about the plates. § 87(2)(b) said he got the plates from his friend in Coney Island whenever he needed new plates (BR9; BR11).

In PO Castillo's BWC from 1:00-2:50, § 87(2)(b) complies with all commands from PO Castillo such as lowering the back windows. No occupants are seen moving as the officers alleged. No one is hiding their hands or moving them in any way that would indicate hiding or reaching for a weapon or drugs. From 3:30-7:15, PO Castillo and PO Rodriguez ask § 87(2)(b) about the paper license plates. PO Rodriguez determines they are illegal. § 87(2)(b) continually complies with the officers and answers their questions (BR4).

PO Castillo explained that § 87(2)(b) produced a NYS permit, not a license (BR11).

PO Rodriguez and PO Castillo explained that they were assigned to the paper plate initiative in which they have instructions to investigate paper license plates after they have already stopped vehicles for violating other traffic laws. The NYPD noticed in the 6 months prior to this incident, there was an increase in shootings with vehicles with a New Jersey temporary license plate. Because of this pattern, PO Castillo and PO Rodriguez drew a connection between temporary out-of-state license plates, stolen vehicles, and violent crimes (BR9; BR11).

Because of the four temporary plates in the glove compartment, § 87(2)(b) said his plates were from a friend, and the movements of the vehicle's occupants, PO Castillo and PO Rodriguez suspected that the car might be stolen. The fact that § 87(2)(b) could not produce any documentation that he was the owner of the vehicle also raised their suspicions. At this point, neither officer had run any checks on the vehicle to verify if it was stolen or warrant audits on the occupants (BR9; BR11).

At 3:58 in PO Castillo's BWC, PO Castillo asks § 87(2)(b) to step out of the car and asks, "you got anything on you?" § 87(2)(b) states he has a knife. PO Castillo frisks and searches § 87(2)(b) while asking why he would have something in his "fucking underwear." PO Castillo then asks Individual 2 to step out of the vehicle and if he has any "knives, weapons?" Individual 2 states, "check me" and PO Castillo frisks him. PO Castillo asks § 87(2)(b) to step to the back of the car and asks if § 87(2)(b) "has anything on him." PO Castillo frisks § 87(2)(b) (BR4).

PO Castillo believed that the forged instrument (the fraudulent paper license plates) gave him probable cause to arrest § 87(2)(b) but § 87(2)(b) was not under arrest when PO Castillo discovered the fraudulent plates. PO Castillo said probable cause allowed him to ask everyone to step out of the vehicle and ask § 87(2)(b) if he had a weapon on him. PO Castillo further explained he had reasonable suspicion that there were more weapons in the car because the driver and the front occupant had knives. PO Castillo believed that he can always ask any occupant of a stopped vehicle if they have weapons (BR11).

PO Castillo asked § 87(2)(b) about his "fucking" underwear in an attempt to gain § 87(2)(b)'s compliance. He stated that § 87(2)(b) had been arguing with the officers and he interpreted this arguing as a form of non-compliance (BR11).

In PO Rodriguez's BWC from 04:30-05:42, PO Rodriguez asks Individual 1 if there is anything that can poke or stab her. He states he has a knife. She asks Individual 1 to step out and he indicates where he has the knife. She frisks Individual 1. From 07:25-07:41, PO Rodriguez then frisks Individual 3 and has all of them step to the back of the car (BR5).

PO Rodriguez explained that she heard § 87(2)(b) say that he had a knife, which meant that the other occupants may have had knives too. PO Rodriguez also said that the movement of the occupants when the car rocked back and forth, leaning toward the windows, leaving forward in their seats, and her knowledge that most vehicles with temporary plates are stolen and connected to armed crimes lead her to believe that there might be other weapons in the vehicle. PO Rodriguez asked Individual 1 if he had any weapons and he said that he had a knife in his pocket. When Individual 1 stepped out, she frisked him to remove the knife. Individual 3, who was sitting in the back, was asking questions about the legality of the stop, which PO Rodriguez believed was a way to distract her. Individual 3, had been leaning forward in his seat, which she believed might have been an attempt to hide a weapon. Therefore, she asked Individual 3 if he had a weapon and subsequently frisked him with negative results (BR9).

As per *People v. Garcia*, 20 N.Y.3d 317, whether the individual questioned is a pedestrian or an occupant of a vehicle, a police officer who asks a private citizen if he or she is in possession of a weapon must have founded suspicion that criminality is afoot (BR12).

Patrol Guide Procedure 212-11 states that a frisk is authorized when the member of the service reasonably suspects the person is armed and dangerous. This includes situations in which the officer reasonably suspects that the person has a weapon. However, a search occurs when the officer places her/his hands inside a pocket or other interior portion of a person's clothing or personal property to remove an object that the member felt during a frisk and reasonably suspects is a weapon or dangerous instrument (BR13).

According to NYPD Patrol Guide Procedure 200-02, The Department is committed to accomplishing its mission of protecting the lives and property of all citizens of New York City by treating every citizen with compassion, courtesy, professionalism, and respect (BR14).

PO Castillo and PO Rodriguez cited the movement of the vehicle's occupants, as well as the fraudulent plates as reasons as to why they questioned the occupants about weapons. However, they did not see any weapons or anyone in the vehicle make any specific movements that would suggest they had weapons on them. The BWC does not show any of the occupants making such alleged movements. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

After PO Castillo and PO Rodriguez questioned § 87(2)(b) and Individual 1 and they both said they possessed knives, the officers frisked and searched them. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

As per Patrol Guide Procedure 212-11, a frisk is reasonable when the officer believes the person possesses a weapon. As noted above, none of the vehicle's occupants make movements to suggest they were armed. PO Rodriguez and PO Castillo could not cite any credible reasons why they

believed Individual 2, § 87(2)(b) and Individual 3 had weapons. The officers frisked them anyway. § 87(2)(g)

PO Castillo stated that § 87(2)(b) was being uncooperative by arguing, so he used profanity to get him to comply. However, according to BWC, § 87(2)(b) was not arguing with the officers; he was complying with all commands before the use of profanity. § 87(2)(g)

Allegation N- Abuse of Authority: Police Officer Sergio Castillo searched the vehicle in which § 87(2)(b) and Individuals 1-3 were occupants

§ 87(2)(b) explained that males stood by the trunk of the car while PO Castillo searched the car (BR8).

PO Castillo believed that the occupants of the vehicle could have been hiding contraband because the car was rocking back and forth when the officers approached. He also believed that the forged plates gave him probable cause to search the vehicle and to investigate whether the car was stolen. He later learned that the car was not stolen because the VIN numbers on the windshield and dashboard all matched. However, he did this check after searching the car (BR11).

PO Castillo's BWC from 00:53-5:01 shows no movement of the car and none of the occupants are moving as PO Castillo and PO Rodriguez alleged. His BWC from 07:41-10:43 shows that he searched both front and back seats of the car, under the seats and picked up clothes on the seats before ever checking for audits or VIN identification (BR4).

PO Castillo issued Summons § 87(2)(b) for driving an unregistered vehicle (BR3).

In *People v. Galak*, 81 N.Y.2d 463, a search could be justified on grounds other than those that initially prompted police to stop the vehicle. The court held that evidence discovered during the stop contributed to the probable cause to search... because both probable cause and the required nexus were present, the search of the vehicle did not exceed permissible bounds. This case cited the automobile exception, which states that police may search a vehicle without a warrant when they have probable cause to believe that evidence or contraband will be found there (BR15).

In addition, the NYPD Auto Crime Manual notes that simply displaying a temporary tag is not a reason to pull over a vehicle and officers are instructed to query DAS to investigate the license plate. Officers need to check the VIN to make sure the VIN on the temp tag matches the actual VIN on the vehicle. The officers need to determine if the temp tag is fraudulent. If it is not, a summons for unregistered vehicle VTL 401 or uninsured vehicle VTL 319 may be in order. Further, if officers pull over a car and determine the temp tag is fraudulent, they must be able to explain that the operator knew or should have known that the temp tag is fraudulent to effect an arrest. If they determine the temp tag is fraudulent but cannot determine culpability on the operator's part, it is permissible to seize the fraudulent temp tag along with the vehicle and then issue the operator a summons. An arrest does not have to be made in that instance (BR16).

PO Castillo and PO Rodriguez initially pulled over the vehicle for illegal window tints and then saw the car may have had a forged license plate. BWC then shows § 87(2)(b) acknowledging to the officers that he knew the temporary license plates were illegal because he had more illegal New Jersey plates in the glove compartment that he obtained from a friend in Brooklyn. § 87(2)(g)

§ 87(2)(g)

Allegation O- Abuse of Authority: Police Officer Jeanette Rodriguez threatened to seize § 87(2)(b)'s vehicle.

Allegation P- Abuse of Authority: Police Officer Jeanette Rodriguez threatened to arrest § 87(2)(b)

§ 87(2)(b)

§ 87(2)(b) alleged that PO Rodriguez stated to § 87(2)(b) "you are § 87(2)(b) years old. If you want to make it harder right now, I'll take your car and you to the precinct as well."

§ 87(2)(b) believed that this meant that PO Rodriguez was going to tow his car and arrest

§ 87(2)(b) (BR8).

At 7:52 in PO Rodriguez's BWC (BR5), PO Rodriguez runs a warrant check on § 87(2)(b) while they are standing at the back of the vehicle after being frisked. PO Castillo searches the car while she talks to the occupants. From 10:30-11:20, she explains to § 87(2)(b) that the license plate is not insured and so the vehicle can get towed. PO Rodriguez tells him that he can get arrested for not having the vehicle properly insured and driving an unregistered vehicle.

PO Castillo issued § 87(2)(b) Summons § 87(2)(b) for an unregistered vehicle (BR3).

PO Rodriguez explained that § 87(2)(b) could have been arrested for having fake plates, having a forged instrument, driving with only a learner's permit, and the tints. The car could have been vouchered and taken to the stationhouse because it was unregistered. She told him he could be arrested, and the car could be impounded for these reasons multiple times. PO Rodriguez wanted to inform him about all of his violations and how his behavior caused them to take extra precautions because it was a teachable movement and she wanted him to take responsibility for his actions. PO Rodriguez used discretion to not arrest him (BR9).

Patrol Guide Procedure 209-09 states that if a limited use vehicle is unregistered and/or the operator unlicensed, the vehicle will be removed to the precinct of occurrence, impounded and invoiced (BR17).

PO Rodriguez informed § 87(2)(b) that because his car is unregistered, it can be towed. This is a statement of fact pursuant to Patrol Guide 209-09 in that an unregistered can be towed. As noted above, given that the officers were issuing a summons for an unregistered vehicle, and that the presence of multiple fraudulent temporary plates in the glove compartment gave the officers probable cause to believe that he was in possession of a forged instrument, § 87(2)(g)

Allegation Q- Abuse of Authority: Police Officer Jeanette Rodriguez failed to provide Individual 1 and Individual 3 with business cards

Allegation R- Abuse of Authority: Police Officer Sergio Castillo failed to provide § 87(2)(b) with a business card.

Allegation S- Abuse of Authority: Police Officer Sergio Castillo failed to provide Individual 2 with a business card.

As established above, PO Rodriguez and PO Castillo frisked all of the occupants and PO Castillo issued a summons to § 87(2)(b)

PO Rodriguez explained that she told the occupants and § 87(2)(b) that she works at the 75th Precinct and showed her shield number and name tag. PO Rodriguez said that they did not provide business cards as the situation did not necessitate it. As everyone could see her information on her uniform and PO Castillo's information was on the summons, they did not need to provide business cards (BR9).

As per NYC Administrative Code 14-174, officers must provide civilians with business cards after conducting frisks and car searches (BR18).

In contrast to the testimony, PO Castillo needed to provide business cards to Individual 2 and § 87(2)(b) and PO Rodriguez needed to provide business cards to Individual 1 and 3 because they frisked them, and PO Castillo conducted a car search. The officers did not follow NYC Administrative Guide 14-174. § 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (BR19).
- § 87(2)(b)
- § 87(2)(b)
- Police Officer Sergio Castillo has been a member of service for three years and has been a subject in four CCRB complaints and nine allegations, none of which were substantiated.
- § 87(2)(g)
- Police Officer Jeanette Rodriguez has been a member of service for five years and has been a subject in four CCRB complaints and 11 allegations, none of which were substantiated.
- § 87(2)(g)

Mediation, Civil, and Criminal Histories

- As of October 6, 2021, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards this to complaint (BR23).
- § 87(2)(b)

Squad: 7

Investigator: Lianne May Investigator Lianne May December 21, 2021
Signature Print Title & Name Date

Squad Leader: _____ Manager Vanessa Rosen 12/20/21

Signature Print Title & Name Date

Reviewer:

Signature

Print Title & Name

Date